Jeremy Bass

Full Name of Party Filing Document

1515 21st ave.

Mailing Address (Street or Post Office Box)

Lewiston, ID 83501

City, State and Zip Code

208-549-9584

Telephone

Email Address (if any)

IN THE DISTRICT COURT FOR THE **SECOND** JUDICIAL DISTRICT

FOR THE STATE OF IDAHO, IN AND FOR THE COUNTY OF **NEZ PERCE**

SMALL CLAIMS DEPARTMENT

Jeremy Bass

Plaintiff(s),

vs.

Sparklight

Defendant(s).

Case No. _____

CLAIM

$5,000.00	Claim
$69.00	Filing Fee
	Service Fee
	Another Notice
	Total

Jeremy Bass

Plaintiff's Name

1515 21st ave. Lewiston, ID 83501 **208-549-9584**

Address City State Zip Phone

Plaintiff's Name

Address City State Zip Phone

Sparklight

Defendant's Name

2320 Nez Perce Grade Lewiston, ID 83501 **208-746-3325**

Address City State Zip Phone

Defendant's Name

Address City State Zip Phone

(If you are seeking a judgment for money, fill out this portion.)

AMOUNT OF CLAIM: **$5,000.00** (not including filing and service fees)

DATE CLAIM AROSE: **Dec 2019** (month and year)

BASIS FOR YOUR CLAIM:
See attached

(If you are seeking a judgment for the return of personal property, fill out this portion.)

PERSONAL PROPERTY: I am the owner, or I am entitled to possess, the following personal property, which is being held by the defendant (specifically describe the property):

VALUE OF THE PROPERTY: _____

Service of process by certified mail requested: ☐ Yes ☒ No

BY SIGNING THIS CLAIM, THE PLAINTIFF VERIFIES THAT (1) the Plaintiff is the true owner of the claim, (2) the Defendant resides in _____ County, **or** the Defendant resides outside Idaho and the claim arose in **Nez Perce** County, and (3) the information above is true and correct to the Plaintiff's best knowledge.

CERTIFICATION UNDER PENALTY OF PERJURY

I certify under penalty of perjury pursuant to the law of the State of Idaho that the foregoing is true and correct.

Date: **12/14/2022**

Jeremy Bass _____
Typed/printed name Plaintiff's Signature

Favor de avisarnos antes de la audiencia si usted necesitará un intérprete en la corte.

Attachment to Claim – Basis for Your Claim

The service paid for was not given, and they agreed that was the case. They have put it into writting that they aggreed that they failed to provide the service paid for. They had given a few months credits while we where trying to solve the issue which took many months to correct. They acknowledge that it was about 24 months of issues and lack of service delivered to me but when asked for a credit for the service that i didn't receive they at first tryed to get out of it, but then said that they didn't feel that they should as I still had the broken service, and when I pushed back and got to the corporate office the VP of the western offices wrote back acknowledging everything, she said that they would be willing to do the credits but that they would just give me a credit of their lowest service cost minus the credits of the couple of months applied at full service cost. I protested that this as selling me a service they agreed they didn't provide doesn't give them the right to retroactively downgrade the service to one that they almost provided as that constitutes a "bait and switch", a violation of the Consumer Fraud and Deceptive Business Practices Act. They have since stopped working with me and applied no further credit or acknowledgment past the letter that states they know they didn't provide the service paid for. I am now seeking a full refund of the services for that time period at the rate of service for that time of $150 which doesn't include taxes. For 24 months of time this adds up to $3000. As I told them, I did suffer damages in lost revenue due to the service not being what was paid for and the lost time working with them on repeated service calls and countless over the phone support to get the issues resolved. I am asking for an additional $2000 to cover court costs of filing and the time lost and lost revenue for my work that was severely impeded during that time frame. Even though I had originally asked for just the credits to the account for the months they agreed where not delivered, I am asking for the refund since I have had to take this route to seek a resolution.